

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

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1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (2) Additional information aimed at guiding Member States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: **Georgia**

Organization or entity responsible for the preparation of the report: **Ministry of Education, Science, Culture and Sport of Georgia**

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ **Yes** ³

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

² http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

³ 04/11/1992

2. **Ratification of the Protocol⁴ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ **No**, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☒ **Yes** ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☒ **No**

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁵*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁶ (several items could be ticked/mentioned):

☒ **Constitutional laws and/or legislation prohibit discrimination in education**

☒ **Regulations prohibit discrimination in education**

☒ **Policies and programmes aim to eliminate and prevent discrimination in education**

☐ Access to justice in case of violations of the right to non-discrimination in education

☐ Combatting discrimination in terms of curriculum

☒ **Other:**

- Article 35 of Constitution of Georgia, adopted on 24 August 1995 (Last amendment 27.12.06) states that everyone shall have the right to receive education and the right to free choice of a form of Education. Inclusive education in Georgia is regulated by the Law on “Early and Preschool Education”, “General Education”, “Vocational Education” and the National Curriculum. The Laws of Early and Preschool, General and Vocation Education are harmonized to the Convention on the Right of People with

⁵ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁶ See: Article/Paragraph 1(1).

Disability.

- Since 2005 the Ministry started to develop Inclusive Education at General Education level. Law on General Education and National Curriculum recognize the individual and alternative forms of Education. For accessible and quality education developed additional services for SENs in Public schools.
- Relationships related to inclusive education is regulated by the Law of Georgia on General Education” and act of ministry of education and science of Georgia N16/N February 21, 2018, “On the approval of the rules for the introduction, development and monitoring of inclusive education, as well as the mechanism of identification of students with special educational needs”.
- New law on the Vocational Education was adopted in September 2018, aiming at (1) improving the quality and flexibility of the vocational education system, (2) establishing links with general, vocational and higher education, (3) integrating general education in the vocational education programs, (4) accumulation and transferring the credits; (5) development of adult educational system etc. In the framework of the new law the system of adult learning was developed, the vocational training courses were formalized and became the part of formal education, also the mechanisms of non formal/informal education recognition were established. The new law also created the basis of delivery the general education within the vocational frameworks. From the end of 2020 TVET providers will start offering new type of integrated programs, so the young students and adults not having full general education will have opportunity to enroll on the integrated programs and gain VET diploma which will be equivalent to full general education.
- In the framework of new law, in order to upgrade the skills of the adult population and meet the demands of the labor market, the adult education system has been developed in the context of formal education - after undergoing short-term vocational training-retraining programs; a state-recognized certificate is issued. Private companies can also gain the right to provide short-term programs. Regulatory documents for recognition of non-formal education have also been developed and approved. All providers which obtained/confirmed vocational training-retraining programs can get take funding in priority fields.
- Since 2018 National Program “Democratic Culture and Human Rights Education” is launched by LELP National Center for Teacher Professional Development under the Ministry of Education, Science, Culture and Sport of Georgia. The main goal of the program is to promote teaching of democratic culture and human rights in schools.

Within the program following training modules are created:

- Elimination all forms of discrimination in schools;
- Competences For Democratic Culture;

"Preventing bullying in schools and promoting a cultural tolerance".

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

→ *Non-discrimination in the admission of pupils to educational institutions*

→ *Non-differential treatment, including of foreign nationals resident in your country*

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- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/ mentioned):

☒ **Constitutional laws and/or legislation guarantee equal access to education**

☒ **Regulations ensure equal access to all levels and types of education**

☒ **Policies and programmes ensure equal access to all levels and types of education**

☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁷

In Georgia the Issues of Accessibility to Education is regulated by the following acts:

1. The Constitution of Georgia

Article 27 – Right to education and academic freedom

1. Everyone has the right to receive education and the right to choose the form of education they receive.

2. Pre-school education shall be guaranteed in accordance with the procedures established by law. Elementary and basic education shall be compulsory. General education shall be fully funded by the State, in accordance with the procedures established by law. Citizens shall have the right to state-funded vocational and higher education, in accordance with the procedures established by law.

2. Law of Georgia on General Education

Article 7 - Access to general education

1. The State shall ensure the right of each pupil (including pupils with special educational needs) to acquire general education in the official, or in his/her native, language, as close to his/her place of residence as possible.

2. If the right determined by paragraph 1 of this article cannot be exercised through a standard school voucher, the State shall provide such pupils with increased vouchers and/or additional funding within an appropriate targeted programme approved by the Ministry of Education and Science of Georgia.

3. Through increased vouchers and additional funding the Ministry of Education and Science of Georgia shall ensure:

a) Openness of and equal access to lifelong general education for everyone in public

⁷ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

schools;

b) Introduction of inclusive and multilingual education in public schools;

c) Improvement of logistics, software and human resources in public schools;

d) An appropriate remuneration for labour of public school teachers, administration and support staff;

e) A healthy environment in public schools;

f) a smooth study process in public schools, especially in public schools where more than one administrative facility, used in the study process, is on balance as a result of the reorganisation, as well as in public schools located in villages/townships and highland regions, and in multi-sector public schools.

4. The State shall ensure acquisition of a general education in places of detention as provided for by the Imprisonment Code of Georgia.

3. Law of Georgia on Vocational Education

Article 4 - Right to receive vocational education and basic guarantees

1. Everyone has the right to exercise, without any discrimination, the right to receive vocational education in accordance with the procedure established by the legislation of Georgia.

2. Vocational students, listeners, and vocational education teachers and their associations, shall have the right to exercise, without any discrimination, all the rights and freedoms defined by the legislation of Georgia and educational institutions.

3. Educational institutions shall ensure the availability of an individually tailored learning process and necessary special educational services, as well as access to a learning environment in the educational institution, for persons with special educational needs and persons with disabilities.

4. Law of Georgia on Higher Education

Article 3 - Goals of higher education

2. In order to achieve the goals determined by paragraph 1 of this article the State shall ensure:

a) access to and openness of higher education and academic freedom in learning, teaching and scientific research;

b) the opportunity to acquire higher education at any time during a person's lifetime;

c) the integration of higher education and science;

d) the development of quality assurance systems, which implies the functioning of authorization and accreditation systems, and quality management assurance mechanisms at

higher education institutions;

e) full participation in a unified European educational and research area for the processes of learning, teaching and for conducting scientific research works, as well as in other international systems of cooperation;

f) the autonomy of higher education institutions;

g) the participation of academic personnel, scientific personnel and students of a higher education institution in the process of making decisions and monitoring of their execution;

h) the prevention of any forms of discrimination in the field of higher education, including academic, religious or ethnic discrimination, as well as discrimination on the grounds of opinion, sex, social origin and others;

i) publicity and transparency of the management of higher education institutions and of the competitions held in these institutions;

j) the provision of other conditions that facilitate achievement of the goals specified by paragraph 1 of this article.

5. Law of Georgia on Early and Preschool Education

Article 4- The principles of preschool education

1. The children of Georgia at the public preschool education institutions of Georgia are ensured free education and catering services as provided for by the legislation of Georgia .

2. Preschool education, including the school readiness programme, is voluntary, universal and available for every child of relevant age.

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|--|
| ☐ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁸ |
| ☐ Providing re-entry programmes for young | ☐ Providing flexible learning pathways |
| | ☐ Valuing diversity in schools |
| | ☒ Combating stereotyping and |

⁸ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

mothers

stigmatisation

☐ Eliminating all barriers for pregnant girls or young mothers in education

☒ **Other:**

- From 2019 to 2020, supplementary textbooks have been developed for teachers on the education of Students with sensory impairments and learning disabilities. As part of the National Curriculum was developed: 1. Sign language standard and Georgian sign language; 2. An alternative curriculum for students with severe and multiple mental disorders; As well as alternative subject standards; 3. Extended curriculum for visually impaired students; 4. Sensory curriculum for students with severe mental and autistic disorders, as well as standard Georgian language.
- All schools in Georgia are obliged to introduce and develop the principles of inclusive education. Auxiliary materials and textbooks, a national curriculum and an alternative curriculum for students with special educational needs are systematically provided for schools.
- Inclusive education trainings are cascading for the teachers of the subject, as well as for the school principals, school administration and special teachers within the framework of the programs of the National Center for Teacher Professional Development under the Ministry of Education, Science, Culture and Sport of Georgia.
- In the aspect of combating stereotyping and stigmatization, it is important to teach civic education, as well as the rule of handwriting, which includes the creation of textbooks free from stereotypes and discriminatory elements.
- Since 2013, vocational education and training system has become more accessible for people with special educational needs and disabilities. The formal vocational education is free and equally accessible both, for girls and boys. The Georgian law on Vocational Education (09.10.2018) creates basis for inclusive education.

Enrolment in vocational education programs is possible for youths after 9th grade of general education. Within each vocational education program, at least 15% of quota is set for the persons with special educational needs and disabilities. An alternative vocational testing procedure has been developed to tailor enrolment procedure to the individual needs of persons with special educational needs and disabilities. This procedure gives possibility to practically try/test vocational programs in individually adapted conditions and make the best vocational choice by the applicants. Since 2017, students with special educational needs are provided with the additional funding – quarterly voucher of 1000.0 GEL. This funding is used according to the individual needs of students during their learning process. Different types of special education services is available at the vocational education settings such as: inclusive education specialist, assistant, sign language interpreter, orientation and mobility trainer, mobility facilitator, transportation etc. In addition, vocational students with special educational needs are provided with adapted learning materials, individual educational plans, and supportive equipment. Electronic bank of Georgian Sign Language (which is located on a special web page) and its mobile application was created to support education of sign language users. Audio versions of the textbooks was prepared to support learners with visual impairments and reading difficulties. To support professional orientation of persons with diverse needs, videos, which based on universal design principles, were prepared. Besides, different methodological guidelines are developed on a regular basis to support inclusive vocational education.

Professional development trainings and workshops are carried permanently to support

competence development of specialists involved in inclusive vocational education. The field specialists provide monitoring and professional supervision in vocational educational settings monthly. Most vocational education facilities have a ramp and adapted bathrooms and in 4 vocational education institutions the physical environment is tailored to the universal design principles.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

- A third-generation national curriculum has been developed for primary and secondary levels and it has to mentioned, that civic education component has been strengthened. Civic education, in turn, includes a component of gender equality
- LEPL National Centre for Teacher Professional Development has target program "Promotion of Inclusive Education". During this program several modules have been elaborated for the special teachers on inclusive education.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

Civil Code of Georgia

Article 1106 - Concept of marriage

Marriage is a voluntary union of a woman and a man for the purpose of creating a family, which is registered with a territorial office of the Legal Entity under Public Law (LEPL) Public Service Development Agency of the Ministry of Justice of Georgia ('a territorial office of the Agency').

Article 1107 - Conditions for entering into marriage

Entry into marriage shall require:

- a) marriageable age
- b) consent of the persons to be married.

Article 1108 - Marriageable age

1. Marriage shall be permitted from the age of 18.
2. The marriage of an adult with limited capacity to contract shall be permitted with a prior written consent of his/her custodian.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early

childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁹. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

☒ **Pre-primary education is free of charge for all: Please provide the duration:**

Public kindergartens are free of charge; duration – 4 years.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Constitution of Georgia;

The international Agreements of Georgia;

Organic Law of Georgia – Local Self-government Code;

Law of Georgia on Early and Preschool Education;

Other legislative and subordinate normative acts of Georgia.

The State standards of early and preschool education;

Professional Standards for Caregiver Pedagogues;

Technical regulations on Nutrition/meals and establishing national value norms for institutions;

Technical regulations on the rules of observing Sanitary and Hygienic norms at the institutions;

Draft standards have been elaborated for the Technical Regulations for Buildings, Infrastructure and Material and Technical Resources of Institutions as well as the Rule for Authorization of Kindergartens that will ensure realization of the law on Early and preschool Education. The Most challenging issues are connected to the infrastructural arrangements especially in the city of Tbilisi.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on

⁹ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ **Yes** ☐ **No**

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

The duration of compulsory primary education is I-IX grades. Enrollment age - 6 years.

- Is primary education available free of charge to all?

☒ **Yes:** Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

- Primary education in public schools is free for all.
- Teaching in general educational institutions is regulated on the basis of the following legislative frameworks: The Constitution (Supreme); Law on General Education; National Curriculum.
- In our country, the state fully finances education in public schools established by the state.

☐ **No:** Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ **Yes** ☐ **No**

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ **Yes:** Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Duration of secondary education is X-XII grades.

- Teaching in general educational institutions is regulated on the basis of the following legislative framework: the Constitution (Supreme); National Goals for General Education; Law on General Education; National Curriculum.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☒ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

Labour Code of Georgia

Article 4 - Minimum employment age and origination of legal capacity to enter into labour agreements

1. Legal capacity of natural persons to enter into a labour agreement shall originate at the age of 16.
2. Legal capacity of minors under 16 to enter into a labour agreement shall originate by consent of their legal representative or a custody/guardianship authority unless the labour relations contradicts minors' interests, prejudice their moral, physical and mental development, and limit their right and opportunity to acquire compulsory primary and basic

education. Consent of the legal representative or custody/guardianship authority shall be valid with respect to similar type of subsequent labour relations as well.

3. A labour agreement with minors under 14 may be concluded solely in connection with the activities in sport, art, and culture, as well as for performing certain advertising work.

4. Concluding labour agreements with minors involving them in performing works related to gambling, nightclubs, preparation, transportation, and sale of erotic and pornographic products, as well as pharmaceutical and toxic substances, shall be prohibited.

5. Concluding labour agreements with minors, as well as with pregnant women or nursing mothers, to perform hard, harmful, or hazardous work shall be prohibited.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3¹⁰, and target 4.4¹¹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹² to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☒ **Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training**

☒ **Regulations prohibit discrimination in higher education, including technical and vocational education and training**

☒ **Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training**

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

According to the Article 3. (1, a) of the Law of Georgia on Higher Education, “promotion of the development of Georgian and global cultural values, orientation towards the ideals of democracy and humanism essential for the existence and development of a civil society is one of the goals of higher education.”

According to the same article (3, j) In order to achieve the goals determined by paragraph 1 of this article higher education institutions shall ensure access to and openness of higher education, academic freedom, opportunity to acquire higher education at any time during a

¹⁰ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹¹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹² See: Article/Paragraph 1(1).

person's lifetime, participation of the academic personnel, scientific personnel and students in the process of making decisions and monitoring of their execution, publicity and transparency in managing a higher education institution and in competitions conducted in the institution, prohibition of any forms of discrimination in the field of higher education, including discrimination on any ground such as academic, ethnic, social or religious affiliation, and/or opinion, sex and other grounds.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

☐ Higher education is generally free of charge

☒ **Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience**

☒ **Higher education is accessible through financial incentives and scholarships**

☒ **Higher education is accessible through positive or affirmative action measures**

☒ **Higher education is accessible through credit transfer system between states**

☐ Other:

Students are admitted to universities based on the results of centralized standardized admission tests. Based on the results of their test scores students are awarded merit-based grants for funding their studies at bachelor and master degree level.

In addition, Needs-based grants are allocated to the students with different social background: students from highland areas; graduates from minority schools (Azerbaijani and Armenian); students of the KIA13 and MIA14 military families; repatriates; orphans and students from large families, students under the state care; students impacted by Russian aggression; students from occupied territories; students with special education needs/disabilities; socially vulnerable students. In 2019 the program was extended to cover the students with autistic spectrum disorder. In addition to this, the Ministry developed the special preparatory program for the university entrants from the Occupied territories of Georgia to ensure their access to higher education in Georgian universities.

20% of state education grants are annually allocated for the social grants program.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

¹³ Killed in Action;

¹⁴ Missing in Action.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Students are entitled to take the grants (merit-based, needs-based) to the universities of their choice both public and private.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

☐ Provision of education for persons who have not received or completed the whole period of their primary education

☐ Provision of literacy programmes

☒ **Provision of appropriate learning and life-skills programmes**

☒ **Provision of free of charge learning opportunities**

☒ **Provision of flexible learning pathways**

☒ **Provision of professional training and qualifications**

☐ Other:

- Please elaborate further on the measures taken:

The Ministry of Education, Science, Culture and Sport of Georgia nearly 13 years develops Inclusive Education. To protect the right of education of all people at all level of Education the Ministry of Education, Science, Culture and Sport Since 2009 started integration of importance records in the Laws.

Article 35 of Constitution of Georgia, adopted on 24 August 1995 (Last amendment 27.12.06) states that everyone shall have the right to receive education and the right to free choice of a form of Education. Inclusive education in Georgia is regulated by the Law on “Early and Preschool Education”, “General Education”, “Vocational Education” and the National Curriculum. The Laws of Early and Preschool, General and Vocation Education are harmonized to the Convention on the Right of People with Disability.

Since 2005 the Ministry started to develop Inclusive Education at General Education level. Law on General Education and National Curriculum recognize the individual and

alternative forms of Education. For accessible and quality education developed additional services for SENs in Public schools.

relationships related to inclusive education is regulated by the „**Law of Georgia on General Education**” and act of ministry of education and science of Georgia N16/N February 21, 2018 „**On the approval of the rules for the introduction, development and monitoring of inclusive education, as well as the mechanism of identification of students with special educational needs**”.

In 2018, the law of General Education recognized the profession of Special teacher and started to develop internal and external education programs for them to improve the quality of school staff, focusing on the quality of teachers, quality in continuing professional development, developing teacher competences and reinforcing school leadership;

The Education system recognized the specialists like SEN's individual assistant, occupation therapist, psychologist, mobility and orientation specialist, sign teacher, sign interpreter, speech therapist. SEN students with the recommendation of specialists (teachers, special teachers, multidisciplinary team members) are provided with individual assistants, psychologists, occupation therapists, speech therapists, mobility and orientation specialists, sign language specialist.

Iliia state University carries out the Master program in Special Education. In teacher preparation Bachelor programs is integrated 5 credits on Inclusive Education.

The Teacher Professional Development Center Develops and Implement different training programs for teachers and Special Teachers.

Today, from 2088 public schools of Georgia, Inclusive Education is implementing in 1382 public schools. By the statistics of 2019, in all public School of Georgia are involved nearly 8500 Special Education Needs students. At Vocation Education, level nearly 700 Special Education Needs students. 1500 special teachers are employed in public schools for supporting SEN students at general education level;

All new public schools' buildings are accessible for children with different disabilities; 781 public school first floor is accessible for students with physical disability.

Braille, Sign language and other communication means became the basis of teaching and learning processes and is being taught from the very first Grade in schools for Blind and Low Vision students and for Deaf and Hard of Hearing students. Teaching methods as well as curricula have been brought into compliance with acknowledged child development and national curricula requirements.

Working on developing Sign Language. Created signs are located on web: www.ge.signwiki.org

Multidisciplinary Team based on social model was set up within the Ministry. The team is composed of psychologists, special education teachers, speech therapists and occupational therapists. Their function is to identify and assess student with special education needs (SEN) and support their integration into mainstream educational environment. It should be noted that the multidisciplinary teams work in all municipalities across Georgia.

There are 8 Special School in whole Georgia (One school for Blind and Low Vision students, two schools for Deaf and Hard of Hearing students, one school for persons with Behaviour Disorders and 4 schools for persons with Multiple Disorders). Since 2018 the Law of General Education existed all 8 Special Schools recognized as a resource school.

the purpose is to change the model of existed special school and all these schools (Blind and Low Vision students, for Deaf and Hard of Hearing, Behaviour and Multiple Disorders) became the resources for inclusive Education in public school and reduce the numbers of SENs in Resource schools.

All special schools get the voucher for each pupils with Special Education Needs. The Ministry of Education, Science, Culture and Sport of Georgia carries out the project "Special Education Need Child's support program at Special schools". Within the scope of the program boarding schools are being provided support, also children who are receiving their education at special school are being provided with medical insurance.

Since 2013 the Ministry started to develop Inclusive Education at Vocation Education level. The Law of Vocation Education is also harmonized with the Convention to the people with disability. For supporting the employment of the people with disability developed the Ministry developed the methodology "job coaching" and delivered to the Ministry of Internally Displaced Persons from the occupied Territories, Labor, Health and Social Affairs of Georgia.

With regard to Adult Education, ZurabZhvania School of Public Administration LEPL, founded in 2005 by Presidential decree, operating under the umbrella of the Ministry of Education, Science, Culture and Sports of Georgia continued its successful work on improving the level of knowledge and skills of public servants and national minority representatives and promoting their career advancement as well as integration into the social life of the country, implementing two main Programs: The State Language Program and Public Administration Program. The school offers potential beneficiaries to enhance knowledge in almost all fields of employment in the public sector. The program is diverse as content as well duration of courses. School regularly conducts research to identify the needs of public organizations in order to introduce and implement new programs. Such new directions are management of infrastructural projects and maintenance of public schools. The demand for these courses is quite high. Total number of trained people in years 2017- 2019 is **2,585**.

Government resolution #№242 on the "Rule of determining the professional development needs of public servant, and rule of adopting professional development standard" - adopted on the 22nd of May, 2018, includes the following basic programs for professional development of public servant: "Managerial skills of public servant" and "Development of personal and professional competences". Programs are accessible at LEPL ZurabZhvania School of Public Administration. After the program, listeners are able to successfully utilize their theoretical knowledge in practice. Moreover, in order to develop result-oriented skills, modern teaching methods are used, which improves the perception of delivered information and learning quality. The program includes knowledge assessment system, which is the main basis for granting the certificate. The program uses appropriate electronic textbooks and training-methodical literature.

Within the restriction of Covid-19 School offers online training programs to all beneficiaries. State Language online course is most popular and already has more than 500 listeners.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade

education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

☒ **Establishment of minimum norms and standards in education**

☒ **Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)**

☒ **Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).**

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

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Higher education institutions in Georgia are required by law to work in compliance with the internal and external quality assurance standards. Nowadays, Georgia's system of external quality assurance comprises of institutional authorization and programme accreditation, while internal quality has functions on both institutional and programme levels to ensure the continuous evaluation and development of the quality of teaching, learning and research processes, professional development of staff and quality of the services and facilities provided by the institution.

Authorization of HEIs is an external mechanism of higher education quality assurance, which is carried out by the NCEQE. Authorization is an institutional evaluation, which determines compliance of an institution with the authorization standards. The evaluation process is carried out by expert panel and is based on the analysis of the information provided in the self-evaluation report (SER) of the institution and collected during the site-visit. Authorization is obligatory for all HEIs in order to be allowed to carry out educational activities and issue a diploma that is recognized by the state.

Accreditation of higher education programmes is an external mechanism of higher education quality assurance, which is carried out by the NCEQE. Accreditation is a programme evaluation, which determines compliance of a programme with the accreditation standards. The evaluation is carried out by the accreditation experts' panel and is based on the analysis of the information indicated in the self-evaluation report of the programme and collected during the experts' site-visit. Accreditation is obligatory for regulated professions (Medicine, Law, Teacher Education, Maritime Education, Veterinary) and doctoral programmes. It is not obligatory to be accredited for the rest of the programmes. However, higher education programme has to be accredited in order to be eligible for national grants.

LEPL National Centre for Educational Quality Enhancement (NCEQE) under the Ministry has developed quality assurance standards in general, vocational and higher education and undertakes external quality evaluations that establishes and encourages minimum standards and norms in education.

The NCEQE has considered conditions relating to the quality of education in its higher education quality assurance standards. Evaluation of infrastructure is a part of a Standard 7 - Material, information and financial resources. It considers to evaluate infrastructure and its safety for students and staff, environment necessary for implementing educational activities and adapted environment for people with special needs. Teaching materials are also evaluated within standard 7, in material resources.

Evaluation of learner/teacher ratios is a part of a Standard 4 - Staff of the HEI. It considers to evaluate ratios at institutions to evaluate staff workload and therefore quality of program implementations within workloads and ratios.

Use of ICT has a crucial part in evaluation standards, it is evaluated in Standard 7 as a part of information resources infrastructure, also it is evaluated in standard 2, as it is considered to be a part of effective management of the institution.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

☒ **Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)**

☒ **Initial training and continuous professional development is provided**

☒ **Minimum standards and qualifications are required for the teaching profession**

☒ **Measures taken to strengthen the social status and attractiveness of the teaching profession**

☒ **Performance monitoring systems**

☐ Measures taken to increase women in leadership positions in education

☐ Other:

- Please briefly elaborate further on the measures taken:

Teacher's professional development scheme was elaborated and implemented by LEPL National Center for Teacher Professional Development since 2015. According scheme regulations there were several ways of entry to the profession and other compulsory activities for acting teachers. They were obliged to do several optional and mandatory activities such as: social and academic projects, internal and external monitoring, different types of lessons and other activities. All these activities were accumulated by credit points. There were four statuses of teachers such as: practitioner, head, lead and mentor. Regarding their statuses teachers were obliged to do appropriate activities. Teacher's statuses were linked to their salaries at all. Now this scheme is called Rules of Regulation for Teacher Professional Development. But still this scheme regulates the ways of entry to the profession and then the professional development of pathways. Still there are some mandatory and optional activities according the teacher's statuses. As for centers activities, it has several target programs which are useful and flexible for teachers according to the schemes regulations such as: promotion of inclusive education, support of non-Georgian teachers, E-twinning, ICT program, STEM teacher's support, Democratic culture and human rights education, Teach and Learn with Georgia, support of Mountainous region schools, distance learning of Georgian language for immigrant pupils, VET program, elaborating teachers professional standards, other special professional F2F and online trainings, special online and printing materials for teachers professional development. There is special supportive unit for teacher's professional development scheme which is responsible for teacher's entry to the profession, external monitor and accumulation of credits and other significant activities. According the schemes regulations the different pathways of entry to the profession and the increasing salary was done specially for strengthening social status and attractiveness of the profession.

Institutional evaluation standards for higher education institutions consider initial training and continuous professional development and performance monitoring system.

Precisely, Standard 4 requires constant provision of its staff with professional development opportunities and improved work conditions and asks for professional development mechanisms.

Moreover, institution has to have a developed performance evaluation system for its staff (academic, scientific, invited, administrative and support staff)

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ **No**

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹⁵ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ **Curriculum includes human rights education**

☐ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

- According to the Law of Georgia on General Education, private school is a general education institution established as a legal entity under private law. Law of Georgia on General Education regulates basic goals of the state policy in the field of general education.
- According to the Law of Georgia on Higher Education (9th Article, 2nd Paragraph) "A higher education institution shall be established in a form of a legal entity under public or private law". Besides, external quality regulatory provisions apply equally to all types of higher education institutions operating across the country.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹⁶ explicitly apply to private educational institutions?

¹⁵ Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

¹⁶ See: Article/Paragraph 1(1).

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

- Law of Georgia on General Education;
- Anti discrimination provisions embedded both in Law on Higher Education as well as authorization standards should be met by all types of higher education.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ **Constitutional laws and/or legislation protect the right to education of national minorities**

☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☒ **Curriculum is adapted to national minority needs**

☒ **Teachers are trained to adapt to national minority needs**

☐ Other:

- Please provide a brief description of the provisions:

- According the Law of Georgia on General Education any discrimination on admission to a school shall be inadmissible. Schools shall protect individual and collective rights of minorities to freely use their native language, preserve and manifest their cultural affiliation on the basis of equality.
- As mentioned above the Laws Georgia on Higher Education prohibits any forms of discrimination in the field of higher education, including discrimination on any ground such as academic, ethnic, social or religious affiliation, and/or opinion, sex and other grounds.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

A special attention is devoted to ensuring access to quality education and to improving the knowledge of the state language, as important means for civic integration. Ethnic minorities have access to all levels of education (pre-school, general education, higher education and professional education and training), including in their native language. There are 207 non-Georgian language public schools and 84 non-Georgian language sectors in Georgia.

The National Curriculum is translated into national minority languages. A bilingual programme has been elaborated in the framework of the “New School Model”, which is to be introduced in non-Georgian language schools. The process of recruitment of bilingual teachers has been launched for the purpose of their employment at the non-Georgian language schools. The implementation of the renewed (upgraded) National Curriculum was launched in the non-Georgian language schools from the academic year 2019-2020. All certified textbooks for I-VI grades have been fully translated. In order to ensure quality of translation, the additional quality control mechanisms were introduced.

During the academic year 2016-2017, 114 teacher-consultants and 136 assistant-teachers of Georgian language, geography and history were assigned to 179 non-Georgian language schools in Kvemo Kartli, Samtskhe-Javakheti and Kakheti Regions. During the academic year 2018-2019 – 285 teachers got assigned to those schools. For the academic year 2019-2020, there are 121 teacher-consultants, 75 teacher-assistants and 69 bilingual assistant teachers assigned to 169 schools.

In 2018 the National Centre for Teachers’ Professional Development, the Legal Entity of Public Law (LEPL) under the Ministry of Education, developed a training module “Creating a safe teaching environment at school for the integration of pupils under the international protection into the school society”. The Module was designed for those teachers that had pupils under international protection in their classes. The training module requires 8-hours of teaching during 2 days. 180 teachers took the course during 2018.

The Ministry of Education developed mechanisms for ensuring access of national minorities to Vocational Education and Training (VET). Since 2016, the representatives of national minorities have been able to pass the test for VET programme in Armenian, Russian and Azeri languages and to enroll in fully state funded vocational training institutions. After enrolling in the VET programme, they first undergo a course (a module) in Georgian language and then they learn their profession.

In 2017, 33 students got enrolled in the VET programme after passing a non-Georgian language test, in 2018 - 49, while in 2019 - 76 students got enrolled. The programme on professional skills development was launched in 2017. The programme supports the cooperation between schools and VET colleges in terms of assisting pupils in identifying their professional interests. The project, elaborated jointly by VET colleges and schools, organizes seminars at schools with the engagement of teachers. Pupils of higher grades are project beneficiaries. Up to 10 schools, with pupils from ethnic minorities, are engaged in this programme.

The state program for VET development and the state program for raising qualification of workforce were adopted by Governmental Decree N76 on 12 February 2018. Both documents also concern the residents of Abkhazia and Tskhinvali Region/South Ossetia as well as the representatives of national minorities. The program envisages full state funding;

the logging costs at the dormitories of the state vocational education and training institutions will be fully covered. Since the beginning of 2018 the training course in Abkhaz language was launched at the Batumi Public School N14, while Abkhaz language “Sunday school” was launched in the public school of village Peria.

Representatives of ethnic minorities have access to higher education. The Programme “1+4”, offering simplified procedures for the representatives of ethnic minorities to enroll in higher education institutions, is rather popular among national minority youth (Official statistical data: in 2010, 299 non-Georgian students got enrolled in higher education institution; in 2011 - 429, in 2012 - 584, in 2013 – 890, in 2014 – 673, in 2015 - 741, in 2016- 960; in 2017 -1047, in 2018 – 1231 and in 2019– 1335).

The program, which supports the ethnic minority entrants in receiving a higher education, is one of the initiatives of the Ministry aimed at providing a quality education to ethnic minority students. Quotas are defined specially for Azerbaijani and Armenian entrants for national unified exams, they are asked to take a general ability test in their own languages (Azerbaijani and Armenian), on the basis of which the students are enrolled at preparatory programs. Furthermore, Azerbaijani and Armenian students will take up a yearlong intensive course in Georgian Language; afterwards, they will be enrolled at the faculties of their choice. Receiving a higher education in Georgian language proves to be an effective tool for building a career for the ethnic minority population.

Moreover, Georgian universities provide ample opportunities for teaching and learning of minority language and culture. Several activities are carried out in order to encourage teaching of minority language and culture by universities. Issue of protection of minority rights is widely covered in ethics codes of universities.

Under the program, representatives of national minorities employed in the public sector, local self-government bodies, regional administrations, the resource centres of the Ministry of Education, employees of public schools, teachers and all other stakeholders became able to study the official language at Zhvania School with the state's budget support for free, in 11 municipalities, as in Regional Centres, as well as in mobile groups (in villages at public schools and community centres). The teaching process complies with the European language competency levels (A1, A2, B1 and B2). Total number of trained people in 2017-2019 is **10710**. Under this program school has created several books and manuals.

The LEPL Zurab Zhvania School of Public Administration implements a program of teaching the state language at its 10 regional training centres (in Akhalkalaki, Ninotsminda, Tsalka, Bolnisi, Dmanisi, Marneuli, Gardabani, Sagarejo, Akhmeta, Lagodekhi) and through mobile groups, which make training available at the towns and villages far from the regional training centres. The program is fully state funded. During 2016-2019, 13 385 representatives of national minorities participated in the programme. Beneficiaries of different ages (16 to 83 years), religious beliefs, profession and social status are engaged in the program.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁷ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational

¹⁷ Articles/Paragraphs 1 and 3.

challenges in this area, as well as the frameworks recently adopted by the international community,¹⁸ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

The Order N 98/N of the Minister of Education and Science of Georgia “on Approval of the Procedure of Validation of Georgian Educational Documents and Recognition of Foreign Education and Fees” was adopted on October 1, 2010. The Order N 98/N was amended on 28.05.2019 (order №97/N) in view of alignment with the requirements of the Lisbon Convention of Recognition to include the provision regarding the recognition of education of the persons holding internationally protected status.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees’ and migrants’ right to education (several items could be ticked/mentioned):

☒ **Inclusion in mainstream education**

☒ **Provision of language courses**

☐ Specific training for educational staff

☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)

☐ Accelerated learning programmes

☐ Non-formal and/or alternative education programmes

☐ Financial support

☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

LEPL- National Centre for Educational Quality Enhancement conducts recognition of education of Refugees and Internally Displaced People and persons who cannot prove their education or qualification as they had studied at institution, which were liquidated or ceased educational activities based on the international treaties, Georgian legislation and sublegal normative acts. The Centre implements a validation procedure of Georgian Educational Documents in cooperation with the Ministry of Education, Science, Culture and Sports of Georgia, educational resource centres, educational institutions eligible to conduct educational activities on the Georgian territory and other entities. In case of the recognition of Foreign Education, the Centre cooperates with representatives of an

¹⁸ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

international information network.

Zhvania School of PA is providing State Language program for refugees and migrants since 2017. 358 people are already trained.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

☒ **Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)**

In spite of comprehensive reforms, we acknowledge that there are still challenges to equal access to education and training services. Among the challenges there is the link of the education with the labor market, development of entrepreneurial skills at all stages of education, as well as supporting science and research.

Globalization and technological changes have created new opportunities in the field of education and employment. Digital transformation has changed the labor market and created the need to develop new skills. Consequently, the education system should bring up young people with relevant competence, knowledge and skills, being one of the most important challenge of modernity, which the Ministry of Education, Science, Culture and Sport should address with appropriate legal and regulatory changes at all levels of education.

☒ **Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)**

Despite the steps taken, the quality of education remains a challenge. In order to succeed, the education system of Georgia needs efforts to continue the internationalization of education, strengthening research and knowledge, international mobility of academic staff, as well as students, in order to meet the international standards and create high quality programs at the local and international level to meet the requirements of the labour market.

☐ **Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)**

☐ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Georgia has made significant progress in reforming the education and science system in recent years. The country has undertaken a number of reforms aimed at transforming the post-Soviet education system and creating a new system that would be in line with rapidly changing world demands and be competitive on the international platform.

Human capital development, the country's regional development prospects and economic growth is directly linked to Education. As a cornerstone for growth, Education has been declared by Government of Georgia a top priority. The prioritization was translated into the governmental pledge to increase gradually the public funding of education over the next 3 years, reaching up to 6% of GDP by 2022. The legislative change ensures that the commitment to fund education is honoured and upheld by the future governments and its legally binding nature would therefore result in its sustainability.

Today, Ministry of Education, Science, Culture and Sport of Georgia (MESCS) is running comprehensive and large-scale reforms on all levels of education. Main goal of the education reform is to make the system flexible, modern and oriented to quality outcomes. The policy vision of the Ministry respects the principle of lifelong and ensures connection between different levels of education in order to contribute to the progress of the society, strengthening democratic governance, employment growth, and self-realization of the individuals in the changing world.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

☒ Translation of the Convention/Recommendation into the national and possibly local languages

☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education

☒ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education

☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

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